

26TRCV00294 26TRCV00294

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Case Number: 26TRCV00294 Hearing Date: August 6, 2026 Dept: P

Motion to Consolidate 25TRCV03986 (improperly identified as 25TRCVP3896) with 26TRCV00294

Moving Party: Plaintiff David Beverly

Responding Party: Defendants Rojoma Ventures, LLC, Red River Enterprises, LLC, Rosalind Pennington, John Meshack

RULING

The court considered the moving papers, and opposition. David Beverly's Motion for Consolidation is DENIED.

PROCEDURAL BACKGROUND

On January 29, 2026, Plaintiff David Beverly, in pro per, filed a "first verified complaint" for 1. Declaratory Relief 2. Conspiracy To Commit Fraud 3. Fraudulent Intentional Misrepresentation of a Limited Liability Company and Concealment; 4. Injunctive Relief; 5. Breach Good Faith & Fair Dealing, and 6. Breach of Lease. On June 17, 2026, Plaintiff, in pro per, filed a "first amended verified complaint" for 1. Declaratory Relief 2. Fraud in the Inducement 3. Fraudulent Concealment 4. Civil Conspiracy 5. Breach of Lease 6. Constructive Eviction 8. Negligent Misrepresentation 9. Intentional Interference with Prospective Economic Advantage 10. Rescission 11. Punitive Damages.

On June 17, 2026, Plaintiff in pro per filed a motion to consolidate. Defendants filed an opposition to the motion on July 23, 2026. The court record shows no reply on file.

FACTUAL BACKGROUND

Plaintiff leased certain commercial premises from Defendants for property located at 6835 La Tijera Blvd., Los Angeles for purposes of operating a restaurant. Plaintiff invested \$225,000 in improvements, repairs, upgrades, and inventory. Upon assumption of possession, Plaintiff discovered alleged undisclosed and unpermitted defectively installed construction defects impacting HVAC and plumbing systems, as well as roof leak thereby leading to mold. The parties allegedly negotiated repairs in exchange for a rent concession, but no repairs were undertaken. Plaintiff unilaterally elected to cease payment of rent.

Defendants filed an unlawful detainer action. The unlawful detainer action is pending in Inglewood, Department 5.

LEGAL STANDARD

"Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact." (Todd-Stenberg v. Dalkon Shield Claimants Trust (1996) 48 Cal.App.4th 976, 978.) The section 1048 states, in relevant part: "(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (b) The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States."

"Consolidation is not a matter of right; it rests solely within the sound discretion of the trial judge." (Fisher v. Nash Bldg. Co. (1952) 113 Cal.App.2d 397, 402.) There are two types of consolidation under §1048: "a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (Hamilton v. Asbestos Corp. (2000) 22 Cal.4th 1127, 1147; Sanchez v. Superior Court (1988) 203 Cal.App.3d 1391, 1396.)

DISCUSSION

Moving Party's Argument

Plaintiff moves for consolidation on grounds that the two actions involve the same property lease. Common questions of law and fact render consolidation more efficient, and reduces the risk of an inconsistent ruling.

Opposing Party's Argument

Defendants challenge the lack of any prior order deeming the cases related. Plaintiff must file a notice of related cases with the unlawful detainer court, as the UD is the first action.

Consolidation would improperly undercut the summary nature of unlawful detainer proceedings.

The cases lack a sufficiently common core of law and facts to justify consolidation. Consolidation would prejudice Defendants.

Reply Argument: NONE

Self-Represented Parties

"Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party. ... 'Trial judges must acknowledge that in propria persona litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' (Citation). When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.'" (Petrosyan v. Prince Corp.

(2013) 223 Cal.App.4th 587, 594.)

Non-Related Cases

Cases not ordered related remain assigned to their courts. (Cal. Rules Court, rule 3.300(j).) Cases not assigned to the same courtroom may not be consolidated. (Los Angeles Superior Court Local Rule 3.3(f) & (g)(1), 4.22(b).)

The court record shows no order relating the cases, thereby allowing consolidation of the actions. (Cal. Rules Court, rule 3.300(j); Los Angeles Superior Court Local Rule 3.3(f)(3) & (g)(1).) Because the cases are pending in different courtrooms, any notice of related cases must proceed in Department 1, not this court. The motion is therefore denied without prejudice on procedural grounds pending an order determining whether the cases are related.

Unlawful Detainer

An unlawful detainer action with an underlying claim of title dispute may be subject to consolidation with the action challenging title. "Because of its summary character, an unlawful detainer action is not a suitable vehicle to try complicated ownership issues involving allegations of fraud." (Mehr v. Superior Court (1983) 139 Cal.App.3d 1044, 1049; Vella v. Hudgins (1977) 20 Cal.3d 251, 255 ["For our present purpose, it is sufficient to note that the proceeding is summary in character; that, ordinarily, only claims bearing directly upon the right of immediate possession are cognizable"]; Cheney v. Trauzettel (1937) 9 Cal.2d 158, 159.)

The underlying dispute over rights and obligations in the lease in no way demonstrate a necessity for consolidation, thereby removing the case from the unlawful detainer proceeding. Challenges to any obligations in the lease may be raised in the unlawful detainer proceeding itself and/or later addressed in the subject action subject to judicial notice of any judgment or order from the unlawful detainer action.

The motion therefore lacks a substantive basis for relief.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Consolidation is DENIED.

Moving party is ordered to give notice of ruling.